

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00052-CR

SHAYNE LYNN JOECKEL, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 402nd District Court
Wood County, Texas
Trial Court No. 25130-2022

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Shayne Lynn Joeckel pled guilty to failure to register as a sex offender, *see* TEX. CODE CRIM. PROC. ANN. art. 62.102(b)(2) (Supp.), and true to one enhancement paragraph. The trial court sentenced Joeckel to ten years' deferred adjudication community supervision and a $2,000.00 fine. The State later filed a motion to adjudicate Joeckel guilty. After a hearing on the State's motion to adjudicate, the trial court adjudicated Joeckel guilty and sentenced him to ten years' imprisonment, plus the balance of his fines, court costs, reimbursement fee, and restitution. Joeckel appeals.

Joeckel's appellate counsel filed a motion to withdraw as Joeckel's counsel on appeal, stating that she had filed an *Anders* brief, *see Anders v. California*, 386 U.S. 738, 743–44 (1967), and that the record contains no meritorious grounds for appeal. Appellate counsel stated in her motion that she had examined all possible points of error and concluded that the record contained "no grounds which could support an appeal seeking reversal and reformation or remand." Appellate counsel's *Anders*' brief set out the procedural history of the case. Appellate counsel provided a summary of the testimony introduced at trial and possible points of error, concluding with respect to each point that it would not succeed on appeal.

Appellate counsel stated in her motion that she sent a certified letter to Joeckel's last known address notifying Joeckel that she had found no reversible grounds of error in the record, filed an *Anders* brief, provided him with a copy of her motion to withdraw and her *Anders* brief, informed him of his right to proceed pro se, and provided him with a pro se form for the purpose of obtaining a copy of the appellate record should he so desire. Appellate counsel informed

Joeckel that the pro se form requesting the appellate record must be mailed to this Court on or before August 18, 2026, and provided Joeckel with this Court's mailing address.

On September 2, 2026, we informed Joeckel that his pro se brief was due on or before September 23. We received neither a request for the appellate record nor a pro se brief from Joeckel. Neither did we receive any motion requesting an extension of time in which to file such a brief.

Appellate counsel's actions comply with an appointed counsel's responsibilities when filing an *Anders* brief and a motion to withdraw in accordance with *Kelly v. State*. *See Kelly v. State*, 436 S.W.3d 313, 318–20 (Tex. Crim. App. 2014). Appellate counsel's professional evaluation of the record demonstrates why there are no arguable grounds to be raised on appeal and meets the requirements of *Anders*. *See Anders*, 386 U.S. at 743–44; *Kelly*, 436 S.W.3d at 318–20.

After our review of the entire appellate record, we have independently determined that there are no non-frivolous grounds for appeal. *See Kelly*, 436 S.W.3d at 318 n.16. In the *Anders* context, once we determine that the appeal is without merit, we must affirm the trial court's judgment. *See Bledsoe v. State*, 178 S.W.3d 824, 826–27 (Tex. Crim. App. 2005).

We affirm the trial court's judgment.[1]

Scott E. Stevens
Chief Justice

Date Submitted: September 23, 2026
Date Decided: October 7, 2026

Do Not Publish

[1]Since we agree that this case presents no non-frivolous grounds for appeal, we also, in accordance with *Anders*, grant counsel's request to withdraw from further representation of Appellant in this case. *See Anders*, 386 U.S. at 744. No substitute counsel will be appointed. Should Appellant desire to seek further review of this case by the Texas Court of Criminal Appeals, Appellant must either retain an attorney to file a petition for discretionary review or file a pro se petition for discretionary review. Any petition for discretionary review (1) must be filed within thirty days from either the date of this opinion or the date on which the last timely motion for rehearing was overruled by this Court, *see* TEX. R. APP. P. 68.2, (2) must be filed with the clerk of the Texas Court of Criminal Appeals, *see* TEX. R. APP. P. 68.3, and (3) should comply with the requirements of Rule 68.4 of the Texas Rules of Appellate Procedure, *see* TEX. R. APP. P. 68.4.